



CHAPTER 62.

An Act to grant certain duties of Customs and Inland Revenue, including Excise, to alter other duties, and to amend the Law relating to Customs and Inland Revenue, including Excise, and the National Debt, and to make further provision in connection with Finance. A.D. 1915.

[29th July 1915.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted, by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

CUSTOMS AND EXCISE.

1. The duty of Customs payable on tea until the first day of July, nineteen hundred and fifteen, under the Finance Act, 1914 (Session 2), shall continue to be charged, levied, and paid until the first day of July nineteen hundred and sixteen, on the importation thereof into Great Britain or Ireland (that is to say):—

Tea, the pound - - - eightpence.

A.D. 1915.

Duties on
immature
spirits.

2. In addition to the duties of Customs payable on spirits imported into Great Britain or Ireland there shall, as from the eighteenth day of May nineteen hundred and fifteen, be charged, levied and paid the duties specified in Part I. of the Schedule to this Act; and in addition to the Excise duty payable on spirits there shall, as from the same date, be charged, levied and paid the duties specified in Part II. of the Schedule to this Act:

Provided that—

(a) The additional duties under this section shall not be charged on mixtures, compounds, or preparations which on importation are charged with duty in respect of the spirit contained in them or used in their preparation or manufacture if the mixture, compound, or preparation is one which is recognised by the Commissioners of Customs and Excise as being used for medical purposes; and

(b) If any person proves to the satisfaction of the Commissioners of Customs and Excise that any spirits to which the restrictions contained in the Immature Spirits (Restriction) Act, 1915, do not apply, have been delivered to him and used solely in the manufacture or preparation of any article recognised by the Commissioners of Customs and Excise as an article used for medical purposes or have been used for scientific purposes, that person shall be entitled to obtain from the Commissioners repayment of the amount of duty (if any) paid under this section in respect of the spirit used; and

(c) The additional duties under this section shall, in the case of blended spirits, be subject to the modifications specified in Part III. of the schedule to this Act,

5 & 6 Geo. 5.
c. 46.

Repayment
of propor-
tional part
of duty on
a liquor
licence in
cases where
business is
discontinued.
10 Edw. 7.
c. 8.

3. Where the holder of any of the manufacturers', whole-sale dealers', or retailers' licences specified in the First Schedule to the Finance (1909-10) Act, 1910, satisfies the Commissioners of Customs and Excise that the business for the purpose of which or in connection with which the licence has been granted has been permanently discontinued, he shall be entitled to surrender the licence and to obtain from the Commissioners repayment, or so far as the duty has not been paid remission, of such part of the duty for the year as bears to the full amount of that duty the same proportion as the period of

the licence unexpired at the date of the surrender bears to a whole year : A.D. 1915.

Provided that a person shall not be entitled to obtain any repayment or remission of duty under this section where the business has been discontinued owing to the disqualification either of the premises or the licence holder by reason of the conviction of the licence holder for some offence.

4.—(1) If it is proved to the satisfaction of the Commissioners of Customs and Excise that any beer which has been removed from the entered premises of a brewer for consumption has accidentally become spoilt or otherwise unfit for use and, in the case of beer delivered to another person, has been returned to the brewer as so spoilt or unfit for use, the Commissioners shall, subject to such regulations as they may prescribe, remit or repay the duty charged or paid in respect of the beer. Allowance in respect of duty on spoilt beer.

(2) If any person contravenes or fails to comply with any of the regulations made by the Commissioners under this section, he shall in respect of each offence be liable to an excise penalty of fifty pounds.

(3) If any person for the purpose of obtaining any remission or repayment of duty under this section knowingly makes any false statement or false representation he shall be liable on summary conviction to imprisonment with or without hard labour for a term not exceeding six months.

5. Where the duty payable under the Finance (1909-10) Act, 1910, in respect of the licence for any such premises as are mentioned in section forty-five of that Act would, but for the provisions of this section, be the full duty and not the reduced duty payable under that section, and the person applying for the licence shows to the satisfaction of the Commissioners of Customs and Excise that the receipts from the sale of intoxicating liquor in the preceding year were made to exceed, in the case of a restaurant two-fifths, and in the case of any other premises one-third of the total receipts in that year from the business of all descriptions carried on by the licence holder in the premises by reason either that— Amendment of s. 45 of Finance (1909-10) Act, 1910.

(1) the receipts from the sale of intoxicating liquor were increased on account of the addition to the duty on beer imposed by the Finance Act, 1914 (Session 2);
or

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- (2) The receipts other than the receipts from the sale of intoxicating liquor were diminished through circumstances connected with the present war;

or for both of those reasons, then, for the purpose of ascertaining whether the reduced duty is payable in respect of the licence, the said section forty-five shall have effect as if three-fifths were substituted for two-fifths and one-half were substituted for one-third.

This section shall have effect as respects any licence taken out on or after the twenty-ninth day of May nineteen hundred and fifteen.

Restriction
of hours
(extension
of relief).

6. Section nine of the Finance Act, 1914 (Session 2), (which provides for a reduction of licence duty where hours of sale are curtailed) shall, in addition to the cases therein specified, apply to cases in which the holder of any retailer's on-licence proves to the satisfaction of the Commissioners of Customs and Excise that, during the continuance of and in connection with the present war, the sale or consumption of intoxicating liquor on his premises has been suspended during any normal hours of sale either—

(a) voluntarily at the request of any naval, military, or civil authority; or

(b) under any order made under section sixty-three of the Licensing (Consolidation) Act, 1910, section twelve of the Temperance (Scotland) Act, 1913, section twenty-one of the Licensing (Ireland) Act, 1833, or section thirty of the Refreshment Houses (Ireland) Act, 1860.

10 Edw. 7. &
1 Geo. 5. c. 24.
3 & 4 Geo. 5.
c. 33.
3 & 4 Will. 4.
c. 68.
23 & 24 Vict.
c. 107.

Exemption
of motor
ambulances
in respect
of duty on
motor spirit.

7. Any person using motor spirit for the purpose of supplying motive power to any motor ambulance when used as such shall be entitled to an allowance or repayment of the duty paid in respect of the motor spirit in the same manner as a person using motor spirit for purposes other than the supply of motive power for motor cars.

Power to
warehouse
certain spirits
of wine on
drawback for
home con-
sumption or
for delivery
duty free for
use in arts, &c.
43 & 44 Vict.
c. 24.

8.—(1) Notwithstanding anything in section ninety-five of the Spirits Act, 1880, a rectifier may, subject to the provisions of that section—

(a) warehouse for home consumption spirits of wine of a strength of seventy-four degrees over proof or upwards rectified by him from spirits on which duty has been paid; or

- (b) warehouse for delivery to a person entitled to receive spirits duty free under section eight of the Finance Act, 1902, spirits of wine of a strength of fifty degrees over proof or upwards so rectified. A.D. 1915.
2 Edw. 7.
c. 7.

(2) The Commissioners of Customs and Excise may make regulations with respect to the conditions under which spirits of wine of a strength of seventy-four degrees over proof or upwards may be warehoused by a distiller or a rectifier, and may by any such regulations modify as respects any such spirits any of the provisions of the Spirits Act, 1880, or any other enactment relating to the warehousing of spirits.

(3) If any person contravenes or fails to comply with any regulations made under this section he shall be liable to an excise penalty of one hundred pounds.

(4) Notwithstanding anything in section twenty-one of the Revenue Act, 1889, the allowance payable under section three of the Customs and Inland Revenue Act, 1885, in respect of spirits of the nature of spirits of wine shall, in the case of any such spirits as are mentioned in subsection (1) of this section, be payable only on the exportation of the spirits or on the spirits being used in the warehouse, and not on the deposit of the spirits in the warehouse. 52 & 53 Vict.
c. 42.
48 & 49 Vict.
c. 51.

9.—(1) Where any unmanufactured tobacco grown in the United Kingdom is exported, or where any tobacco grown in the United Kingdom which has been deposited in any warehouse approved by the Commissioners of Customs and Excise under section two of the Manufactured Tobacco Act, 1863, is shown to the satisfaction of the Commissioners to have been therein manufactured into cavendish or negrohead, there shall, subject to the provisions of this section, be paid in respect of every pound of that tobacco an allowance of twopence. Allowance
on British-
grown
tobacco
exported or
manufac-
tured in
bond.
26 & 27 Vict.
c. 7.

(2) The allowance shall be paid in the case of tobacco exported to the exporter, and in the case of tobacco manufactured in a warehouse to the manufacturer.

(3) No allowance shall be paid under this section—

(a) In respect of any tobacco which, in the opinion of the said Commissioners, is not in a marketable condition or has not been fully cured; or

(b) Except upon production to the person by whom the allowance is to be paid of a certificate from the

A.D. 1915.

proper officer of Customs and Excise that the tobacco has been exported or manufactured into cavendish or negrohead as aforesaid.

(4) No allowance shall be paid under this section after the expiration of two years from the exportation or deposit of the tobacco, as the case may be.

PART II.

Income tax
for 1915-16.4 & 5 Geo. 5.
c. 10.

10.—(1) Income tax for the year beginning on the sixth day of April, nineteen hundred and fifteen, shall be charged at the rate of two shillings and sixpence, and super-tax shall be charged, levied, and paid for that year at double the rates mentioned in section three of the Finance Act, 1914.

(2) All such enactments relating to income tax, including super-tax, as were in force with respect to the duties of income tax granted for the year beginning on the sixth day of April, nineteen hundred and fourteen, shall have full force and effect with respect to any duties of income tax hereby granted:

Provided that—

(a) Sections four and six of the Finance Act, 1914, which confer relief with respect to earned income and small incomes respectively, shall have effect as though the rates mentioned in those sections were doubled; and

5 Geo. 5. c. 7.

(b) Subsection (1) of section twelve of the Finance Act, 1914 (Session 2), shall not have effect with respect to any duties of income tax hereby granted.

16 & 17 Vict.
c. 34.

(3) The annual value of any property which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, for the year ending on the fifth day of April, nineteen hundred and fifteen, shall be taken as the annual value of such property for the same purpose for the next subsequent year; provided that this subsection—

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

32 & 33 Vict.
c. 67.

(b) shall not apply to the metropolis as defined by the Valuation (Metropolis) Act, 1869.

11. Where an assurance company carries on life assurance business in conjunction with assurance business of any other class, the life assurance business of the company shall, for the purposes of the Income Tax Acts, be treated as a separate business from any other class of business carried on by the company.

A.D. 1915.

Separate assessment of life assurance business.

12. In ascertaining for the purposes of section one hundred and one of the Income Tax Act, 1842, or of section twenty-three of the Customs and Inland Revenue Act, 1890, whether an assurance company has sustained a loss in respect of its life assurance business, any income of the company derived from the investment of its life assurance fund shall be treated as part of the profits of the company acquired in that business.

Provision as to calculation of loss where company carries on life assurance business. 5 & 6 Vict. c. 35.

53 Vict. c. 8.

13. The amount of annuities which an assurance company carrying on the business of granting annuities is entitled, for the purposes of subsection (3) of section twenty-four of the Customs and Inland Revenue Act, 1888, to treat as having been paid out of profits or gains brought into charge to income tax shall not exceed the amount of the taxed income of its annuity fund.

Accountability of company for income tax deducted from annuities.

51 Vict. c. 8.

14.—(1) Where an assurance company carrying on life assurance business or any company whose business consists mainly in the making of investments, and the principal part of whose income is derived therefrom, claims and proves to the satisfaction of the Special Commissioners that for any income tax year it has been charged to income tax by deduction or otherwise, and has not been so charged in respect of its profits in accordance with the rules under the first case in section one hundred of the Income Tax Act, 1842, the company shall be entitled to repayment of so much of the tax paid by it as is equal to the amount of the tax on any sums disbursed as expenses of management (including commissions) for that year:

Relief from income tax to certain companies in respect of expenses of management.

Provided that—

(a) relief shall not be given under this section so as to make the income tax paid by the company less than the tax which would have been paid if the profits of the company had been charged in accordance with the said rules; and

(b) the amount of any fines, fees, or profits arising from reversions in the case of an assurance

A.D. 1915.

company, and in the case of any other company the amount of any income or profits derived from sources not charged to income tax, shall be deducted from the amount treated as expenses of management for the year; and

(c) in calculating profits arising from reversions, the company may set off against those profits any loss arising from reversions for any previous year during which this section was in operation.

43 & 44 Vict.
c. 19.

(2) Notice of any claim to the Special Commissioners under this section together with the particulars thereof shall be given in writing to the surveyor of taxes for the district within twelve months after the expiration of the income tax year in respect of which the claim is made, and where the surveyor objects to such claim the Special Commissioners shall hear and determine the same in like manner as in the case of an appeal to them against an assessment under Schedule D., and section fifty-nine of the Taxes Management Act, 1880 (which relates to the statement of a case on a point of law), and any rules made for the purposes of that section shall apply in the case of any such appeal.

57 & 58 Vict.
c. 30.

(3) A company shall not be entitled to any relief under this section in respect of any expenses as to which relief may be claimed or allowed under section thirty-five of the Finance Act, 1894, or section sixty-nine of the Finance (1909-10) Act, 1910, as extended by section eight of the Finance Act, 1914, by which enactments relief is conferred in respect of the cost of maintenance, repairs, insurance, or management of land or houses.

Charge of
income tax
on invest-
ments of
foreign
assurance
companies
doing busi-
ness in the
United
Kingdom.

15.—(1) Where an assurance company not having its head office in the United Kingdom carries on life assurance business through any branch or agency in the United Kingdom, any income of the Company from the investments of its life assurance fund (excluding the annuity fund, if any), wherever received, shall, to the extent provided in this section, be deemed to be profits comprised in Schedule D. of the Income Tax Act, 1853, and shall be charged under the rules of the third case in section one hundred of the Income Tax Act, 1842.

(2) Such portion only of the income from the investments of the life assurance fund shall be charged under this section as bears the same proportion to the total income from those investments as the amount of premiums received in that year from policy holders resident in the United Kingdom and from policy holders resident abroad whose proposals were made to

the company at or through its office or agency in the United Kingdom bears to the total amount of the premiums received by the Company : A.D. 1915.

Provided that in the case of an assurance company having its head office in any British possession the Commissioners of Inland Revenue may, by regulation, substitute some basis other than that prescribed by this section for the purpose of ascertaining the portion of the income from investments to be charged under this section as being income derived from business carried on in the United Kingdom.

(3) The relief conferred by this Act in respect of expenses of management shall, in the case of a company charged to income tax under this section, be calculated by reference to a like proportion of the total expenses of management of the company for the year estimated in accordance with the provisions of this Act.

(4) Every assessment under this section shall be made by the Special Commissioners as though the company under the provisions of the Income Tax Acts had required the proceedings relating to the assessment to be had and taken before those Commissioners.

(5) Where a company has already been charged to income tax, by deduction or otherwise, in respect of its life assurance business, to an amount equal to or exceeding the charge under this section, no further charge shall be made under this section, and where a company has already been so charged, but to a less amount, the charge under this section shall be proportionately reduced.

16. Section five of the Finance Act, 1914 (which provides for the taxation of income in respect of foreign property), shall not apply to income arising from the sources specified in that section of an assurance company so far as that income arises from the investments of the foreign life assurance fund of the company, but a corresponding reduction shall be made in the relief granted under this Act in respect of expenses of management. Amendment of s. 5 of the Finance Act, 1914.

17.—(1) A person shall not be entitled under section fifty-four of the Income Tax Act, 1853 (as amended by any subsequent enactment), to deduct from profits or gains— Limitation of income tax relief in respect of insurance premiums.

(a) In respect of any premium or other payment payable on a policy for securing a capital sum on death (whether in

A.D. 1915.

conjunction with any other benefit or not), more than seven per cent. of the actual capital sum assured; and

- (b) In respect of any premiums or payments to which that section applies payable for securing any other benefits, more than one hundred pounds in all;

and the relief by way of repayment of tax under that section, or by way of deduction for the purposes of supertax under paragraph (b) of subsection (2) of section sixty-six of the Finance (1909-10) Act, 1910, shall be correspondingly limited.

(2) In calculating the deduction under this section in respect of any premium or other payment payable on a policy for securing a capital sum on death no account shall be taken of any sum payable on the happening of any other contingency or of the value of any premiums agreed to be returned or of any benefit by way of bonus, or otherwise, which is to be or may be received either before or after death, either by the person paying the premium, or by any other person, and which is not the sum actually assured.

Provision
as to estimation of total
income.

18. Where an assessment to income tax has become final and conclusive for the purposes of the income tax for any year, the assessment shall also be final and conclusive in estimating total income from all sources for the purposes of super-tax for the following year, or of any exemption, relief, or abatement under the Income Tax Acts, and no allowance or adjustment of liability on the ground of diminution of income or loss shall be taken into account in estimating the total income from all sources for such purposes unless that allowance or adjustment has been previously made in respect of income tax on an application under the special provisions of the Income Tax Acts relating thereto.

Relief from
super-tax in
the case of
military or
naval service, &c.

19. Where it is proved to the satisfaction of the Special Commissioners—

- (a) that any individual, in connection with the present war, is or has been during any year serving as a member of any of the military or naval forces of the Crown, or in any work abroad of the British Red Cross Society, or the St. John Ambulance Association, or any other body with similar objects; and

(b) that the total income of that individual from all sources for that year is or was less than his total income from all sources for the previous year; A.D. 1915.

the total income of that individual from all sources for the purposes of super-tax for that year shall be taken to be his total income from all sources for that year, estimated in the same manner as, under section sixty-six of the Finance (1909-10) Act, 1910, his total income for the previous year is required to be estimated, and where the tax has been paid repayment shall be made accordingly.

20. Section thirteen of the Finance Act, 1914 (Session 2), (which gives relief in respect of diminution of income due to war) shall apply to income tax (including super-tax) for the current income tax year, but with the substitution, as respects postponed super-tax, of the first day of January nineteen hundred and seventeen for the first day of January nineteen hundred and sixteen as the date on which the postponed super-tax is to become payable, and any payment of super-tax for the year beginning the sixth day of April nineteen hundred and fourteen which has been postponed under that section may be further postponed until the first day of January nineteen hundred and seventeen, if the individual from whom the payment is due proves, to the satisfaction of the Special Commissioners, that his actual income from all sources for the current income tax year is or will be less than two-thirds of the income on which he was liable to be charged to super-tax for the year beginning on the sixth day of April nineteen hundred and fourteen.

Continua-
tion of
relief under
5 Geo. 5. c. 7.
s. 13.

21.—(1) The exemption from income tax chargeable under Schedules C. and D., conferred by section thirty-six of the Finance Act, 1894, on penny savings banks and other banks for savings, shall extend to all income of the savings bank which is applied in the payment or credit of interest to any depositor, and that section shall have effect accordingly:

Extension of
relief from
income tax
in favour of
savings
banks.

Provided that, where the interest paid or credited to any depositor in the year for which exemption is claimed exceeds the sum of five pounds, the bank and any branch thereof shall make a return to the surveyor of taxes for the district in which the bank or branch is situate of the name and place of residence of every depositor to whom any such sum has been paid or credited and of the amount thereof, and unless such returns are duly made the bank shall not be entitled to any relief under

A.D. 1915. this section. Any such return shall be made on or before the first day of May in the year following that in respect of which exemption is claimed.

(2) The provisions of this Act conferring relief from income tax in respect of expenses of management shall apply to savings banks and other banks for savings as they apply to companies whose businesses consist mainly of investments.

Repayment
in certain
cases of tax
on interest
paid to
banks.

22. Where interest payable in the United Kingdom on an advance from a bank carrying on a *bonâ fide* banking business in the United Kingdom is paid to the bank, without deduction of income tax, out of profits and gains brought into charge to income tax, the person by whom the interest is paid shall be entitled, on proof of the facts to the satisfaction of the special Commissioners, to repayment of an amount equal to income tax on the amount of the interest.

Remunera-
tion of
persons en-
trusted with
payment of
dividends.

23. The amount which, in accordance with the provisions of section twenty-six of the Customs and Inland Revenue Act, 1885, (which relates to the payment of income tax on foreign and colonial dividends), a person entrusted with the payment of dividends is entitled to receive as remuneration shall, instead of being the allowance specified in that section, be an allowance calculated by reference to the amount of the dividends paid from which income tax has been deducted, and to be fixed by the Treasury at a rate not being less than thirteen shillings and sixpence for every thousand pounds of that amount.

PART III.

NATIONAL DEBT AND LOANS.

Suspension
of new sink-
ing fund.

24. In the financial year ending the thirty-first day of March nineteen hundred and sixteen, that portion of the permanent annual charge for the national debt which is not required for the annual charges directed by the National Debt and Local Loans Act, 1887, or any other Act, to be paid out of that charge shall not be paid.

50 & 51 Vict.
c. 16.

Applica-
tion of
38 & 39 Vict.
c. 45. s. 3.
4 & 5 Geo. 5.
c. 60.

25.—(1) Sections three and five of the Sinking Fund Act, 1875 (which relate to the application of the old and new sinking funds), shall apply and shall be deemed to have applied, to any securities issued under the War Loan Act, 1914, or any Act extending or amending that Act or any other enactment authorising money to be borrowed for the purposes of the present war in like manner as they apply to annuities charged on the Consolidated Fund.

(2) Any securities issued under the War Loan Act, 1914, or any Act extending or amending that Act, or any other enactment authorising money to be borrowed for the purposes of the present war, shall be and shall be deemed always to have been included amongst the securities transfer of which may be accepted by the National Debt Commissioners as consideration for annuities granted by them under the Government Annuities Acts, 1829 to 1882, and amongst the securities in which any money received by the Commissioners as consideration for such annuities may be invested; and the provisions of those Acts relating to such consideration as aforesaid shall apply and shall be deemed always to have applied to such securities in like manner in all respects as they apply to Two and a half Consolidated Stock.

26. Subsection (2) of section fourteen of the Finance Act, 1914 (Session 2), (which relates to subscriptions to loans by members of the House of Commons) shall apply, and shall be deemed to have applied, to subscriptions or contributions to any Treasury bills issued during the continuance of the present war or a period of twelve months thereafter.

A.D. 1915.
—
Extension of
s. 14 of the
Finance
Act, 1914
(Session 2).

PART IV.

MISCELLANEOUS.

27. The amount of any currency notes issued under the Currency and Bank Notes Act, 1914, to any person shall be a floating charge on the assets of that person in priority to all other floating charges, but not in priority to charges which are not floating charges; and, accordingly, section two of that Act shall have effect and be deemed always to have had effect as if the word "floating" were inserted immediately before the word "charges."

Amendment
as to priority
of charge for
currency
notes.
4 & 5 Geo. 5.
c. 14.

PART V.

GENERAL.

28.—(1) In this Act, unless the context otherwise requires,—
The expression "assurance company" means any persons or bodies of persons, whether corporate or unincorporate, to which the Assurance Companies Act, 1909, applies;
The expression "life assurance business" includes the business of granting annuities;

Definitions,
construction,
and short
title.
9 Edw. 7.
c. 49.

A.D. 1915

The expression "annuity fund" means, where an annuity fund is not kept separately from the life assurance fund of an assurance company, such part of the life assurance fund as represents the liability of the company under its annuity contracts as stated in its periodical returns to the Board of Trade under the Assurance Companies Act, 1909;

The expression "foreign life assurance fund" means any fund representing the amount of the liability of an assurance company in respect of its life assurance business with policy-holders and annuitants residing out of the United Kingdom whose proposals were made to, or whose annuity contracts were granted by, the company at or through a branch or agency outside the United Kingdom, and, where such a fund is not kept separately from the life assurance fund of the company, means such part of the life assurance fund as represents the liability of the company under such policies and annuity contracts; such liability being estimated in the same manner as it is estimated for the purposes of the periodical returns of the company to the Board of Trade under the Assurance Companies Act, 1909;

The expression "Special Commissioners" means the commissioners for the special purposes of the Income Tax Acts;

The expression "Income Tax Acts" means the Income Tax Acts, 1842 to 1853, and any other enactments relating to income tax, and, if the context so requires, includes Part II. of this Act.

39 & 40 Vict.
c. 36. (2) Part I. of this Act, so far as it relates to duties of Customs, shall be construed together with the Customs (Consolidation) Act, 1876, and any enactments amending that Act, and so far as it relates to duties of Excise shall be construed together with the Acts which relate to the duties of Excise and the management of those duties.

Part II. of this Act shall be construed together with the Income Tax Acts.

(3) This Act may be cited as the Finance Act, 1915.

SCHEDULE.

A.D. 1915.

Section 2.

ADDITIONAL DUTIES IN RESPECT OF IMMATURE SPIRITS.

PART I.

CUSTOMS.

—	Where the Spirits have been warehoused for a period of Two Years and less than Three Years.	Where the Spirits have not been warehoused, or have been warehoused for a period of less than Two Years.
	<i>s. d.</i>	<i>s. d.</i>
For every gallon computed at proof of spirits of any description except perfumed spirits.	1 0	1 6
For every gallon of perfumed spirits - -	1 7	2 5
For every gallon of liqueurs, cordials, mixtures, and other preparations entered in such a manner as to indicate that the strength is not to be tested.	1 4	2 0

PART II.

EXCISE.

—	Where the Spirits have been warehoused for a period of Two Years and less than Three Years.	Where the Spirits have not been warehoused, or have been warehoused for a period of less than Two Years.
	<i>s. d.</i>	<i>s. d.</i>
For every gallon of spirits computed at proof	1 0	1 6

And so on in proportion for any less quantity.

PART III.

Where spirit which is permitted to be delivered for home consumption on payment of additional duty has, before the seventeenth day of June nineteen hundred and fifteen, been blended with spirit which is permitted to be so delivered without payment of such duty, no additional duty shall be charged on any part of the blended spirit.

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—

Where spirit which is permitted to be delivered for home consumption on the payment of additional duty at the higher of the two rates specified in Parts I. and II. of this Schedule has before that date been blended with spirit which is permitted to be so delivered on payment of additional duty at the lower of those two rates, the additional duty shall be charged on the whole of the blended spirit at the lower of those two rates.

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